

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents*.

DOCKET NO. 21-05

Served: September 23, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

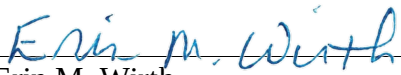
On September 20, 2021, Complainant MCS Industries, Inc. (“MCS Industries”) and Respondent Mediterranean Shipping Company SA (“Mediterranean Shipping”), collectively the “Parties,” filed a joint status report with proposed schedule. The discovery schedule proposed by the parties is reasonable. The parties propose filing any motions for summary decision at the conclusion of discovery. However, in Commission cases it often is more efficient to brief the proceeding once discovery is complete. The parties will be required to file a joint status report in January to propose a schedule for briefing the merits of the proceeding.

The parties shall abide by the following schedule:

September 24, 2021	Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”).
October 8, 2021	Submission of disputes concerning scope of initial RFPs (after counsel confer directly).
November 5, 2021	Target for substantial completion of productions of documents and ESI in response to initial RFPs.
November 12, 2021	Target for exchange of privilege logs.
December 13, 2021	Complete depositions of fact witnesses.
December 20, 2021	Disclosure of initial expert reports.
December 28, 2021	Last day to serve interrogatories, requests for admission, and final RFPs.
January 7, 2022	Disclosure of expert rebuttal reports. File Joint Status Report with proposed briefing schedule.
January 21, 2022	Complete expert depositions.
January 27, 2022	Close of discovery.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).


Erin M. Wirth
Chief Administrative Law Judge